

complaint

Miss A is unhappy that AXA Insurance UK Plc has declined her claim for storm damage to her property.

background

Miss A made a claim to AXA after a storm caused internal water damage to her property. AXA appointed experts to inspect the damage and it produced a report confirming that the claim should be declined. It said that the water was getting in through the chimney either through the lead flashing or the brickwork. The expert stated that the damage was caused by "*gradual process loss (wear and tear)*" to the roof and internally. AXA stated that the damage was not consistent with storm, but if Miss A had accidental damage cover the internal damage would have been covered. Miss A brought her complaint to this service.

Our adjudicator upheld the complaint in relation to the internal damage. He felt that the levels of rainfall experienced constituted storm conditions and as such the internal damage should be covered as this had been caused by the storm. He noted that the event was sudden, unexpected and a direct result of the storm. However, in relation to the roof damage he felt AXA had not acted unreasonably. He asked AXA to reconsider the internal damage claim subject to remaining terms and conditions.

AXA did not accept this. It maintained that storm conditions had not prevailed and that without accidental damage cover the internal damage was excluded. It requested that the complaint be passed to an ombudsman for a final decision.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

When considering a storm claim, I take into consideration:

- Has it been shown, on the balance of probabilities that storm conditions prevailed on or around the date the problem occurred?
- Is the nature of the damage claimed for consistent with storm damage?
- Were the prevailing storm conditions the dominant or effective cause of the problem?

If the answer to any of these questions is "*no*", the complaint is likely to fail.

Based upon the weather records I have seen in relation to the rainfall levels it seems to me that this was extreme enough to state that storm conditions prevailed. Therefore, the answer to the first question is "*yes*".

However, in relation to point two it is clear that for the roof damage the answer is "*no*"; regarding the internal damage though the answer remains "*yes*".

Point three only applies now to the internal damage and it does seem to me that the storm conditions were the dominant cause of the internal damage to the bedroom. Further, it seems to be accepted by the parties that the internal damage to the property was caused at the time of heavy rainfall. As I consider the rainfall to be storm level, cover for this should apply in line with the usual approach of this service.

In conclusion, I do not feel that AXA acted unreasonably in declining the damage to the roof. However, regarding the internal damage it did act unreasonably.

my final decision

I uphold this complaint.

I require AXA Insurance UK Plc to:

- settle the internal damage subject to the remaining policy terms and conditions.

I make no other award against AXA Insurance UK Plc.

John Quinlan
ombudsman